

2025/1544

31.7.2025

COMMISSION IMPLEMENTING DECISION (EU) 2025/1544**of 30 July 2025****determining the date from which the Entry/Exit System is to start operations pursuant to Regulation (EU) 2017/2226 of the European Parliament and of the Council****(Text with EEA relevance)**

THE EUROPEAN COMMISSION,

Having regard to the Treaty on the Functioning of the European Union,

Having regard to Regulation (EU) 2017/2226 of the European Parliament and of the Council of 30 November 2017 establishing an Entry/Exit System (EES) to register entry and exit data and refusal of entry data of third-country nationals crossing the external borders of the Member States and determining the conditions for access to the EES for law enforcement purposes and amending the Convention implementing the Schengen Agreement and Regulation (EC) No 767/2008 and Regulation (EU) No 1077/2011 ⁽¹⁾, and in particular Article 66(1) thereof,

Whereas:

- (1) Regulation (EU) 2017/2226 established the Entry/Exit System (EES). The EES is a system which records electronically the time and place of entry and exit of third-country nationals admitted for a short stay to the territory of the Member States and which calculates the duration of their authorised stay.
- (2) Since the entry into force of Regulation (EU) 2017/2226, the Commission, Member States and the European Union Agency for the Operational Management of Large-Scale IT Systems in the Area of Freedom, Security and Justice (eu-Lisa) have completed the necessary technical and legal arrangements to collect and transmit data to the EES.
- (3) Article 66(1) of Regulation (EU) 2017/2226 sets out a number of conditions which are to be fulfilled before the EES starts operations. Those conditions have all been fulfilled. The implementing and delegated acts necessary for the operation of the EES have been adopted ⁽²⁾; eu-Lisa has declared the successful completion of a comprehensive test of

⁽¹⁾ OJ L 327, 9.12.2017, p. 20, ELI: <http://data.europa.eu/eli/reg/2017/2226/oj>.

⁽²⁾ Commission Implementing Decision (EU) 2018/1547 of 15 October 2018 laying down the specifications for the connection of the central access points to the Entry/Exit System (EES) and for a technical solution to facilitate the collection of data by Member States for the purpose of generating statistics on the access to the EES data for law enforcement purposes (OJ L 259, 16.10.2018, p. 35, ELI: http://data.europa.eu/eli/dec_impl/2018/1547/oj); Commission Implementing Decision (EU) 2018/1548 of 15 October 2018 laying down measures for the establishment of the list of persons identified as overstayers in the Entry-Exit System (EES) and the procedure to make that list available to Member States (OJ L 259, 16.10.2018, p. 39, ELI: http://data.europa.eu/eli/dec_impl/2018/1548/oj); Commission Implementing Decision (EU) 2019/329 of 25 February 2019 laying down the specifications for the quality, resolution and use of fingerprints and facial image for biometric verification and identification in the Entry/Exit System (EES) (OJ L 57, 26.2.2019, p. 18, ELI: http://data.europa.eu/eli/dec_impl/2019/329/oj); Commission Implementing Decision (EU) 2019/326 of 25 February 2019 laying down measures for entering the data in the Entry/Exit System (EES) (OJ L 57, 26.2.2019, p. 5, ELI: http://data.europa.eu/eli/dec_impl/2019/326/oj); Commission Implementing Decision (EU) 2019/327 of 25 February 2019 laying down measures for accessing the data in the Entry/Exit System (EES) (OJ L 57, 26.2.2019, p. 10, ELI: http://data.europa.eu/eli/dec_impl/2019/327/oj); Commission Implementing Decision (EU) 2019/328 of 25 February 2019 laying down measures for keeping and accessing the logs in the Entry/Exit System (EES) (OJ L 57, 26.2.2019, p. 14, ELI: http://data.europa.eu/eli/dec_impl/2019/328/oj); Commission Implementing Decision of 25.2.2019 laying down the specifications and conditions for the data repository of the Entry/Exit System (EES) (C(2019) 1240); Commission Implementing Decision of 25.2.2019 laying down measures for the establishment and the high-level design of interoperability between the Entry/Exit System (EES) and the Visa Information System (VIS) (C(2019) 1270); Commission Implementing Decision of 25.2.2019 laying down performance requirements of the Entry/Exit System (EES) (C(2019) 1260); Commission Implementing Decision of 7.5.2021 laying down detailed rules for the application of Regulation (EU) 2017/2226 of the European Parliament and of the Council as regards the information to be provided to the Commission concerning the stamping of travel documents in exceptional situations (C(2021) 3154); Commission Implementing Decision of 30.6.2021 laying down rules for the application of Regulation (EU) 2017/2226 of the European Parliament and of the Council as regards the specifications and conditions for the public website (C(2021) 4299); Commission Implementing Regulation (EU) 2022/1409 concerning the detailed rules on the conditions for the operation of the web-service and data protection and security rules applicable to the web service, as well as measures for the development and technical implementation of the web service and repealing Implementing Regulation (EU) 2021/1224 (OJ L 216, 19.8.2022, p. 3, ELI: http://data.europa.eu/eli/reg_impl/2022/1409/oj); Commission Implementing Decision (EU) 2022/1337 of 28 July 2022 setting out the template for the provision of information to third-country nationals about the processing of personal data in the Entry/Exit System (OJ L 201, 1.8.2022, p. 48 ELI: http://data.europa.eu/eli/dec_impl/2022/1337/oj); Commission Implementing Decision (EU) 2023/2601 of 20 November 2023 laying down detailed rules on the management of the functionality for the centralised management of the lists of competent national authorities accessing the Entry/Exit System and the Visa Information System (OJ L 2023/2601, 22.11.2023, ELI: http://data.europa.eu/eli/dec_impl/2023/2601/oj).

the EES, which was conducted in cooperation with the Member States; Member States have notified that they have validated the technical and legal arrangements to collect and transmit the data referred to in Articles 16 to 20 of Regulation (EU) 2017/2226 to the EES; and the Member States have made notifications to the Commission regarding the controller, the competent authorities having access to enter, rectify, complete, erase, consult or search data in EES, their designated authorities and central access points.

- (4) It is therefore appropriate to determine the date from which the operations of the EES start.
- (5) The Council endorsed the Interoperability Roadmap on 5 March 2025 indicating October 2025 as the timeline for starting the EES operations.
- (6) 12 October 2025 is the most appropriate date enabling Member States to achieve the EES objectives in a timely manner, as it avoids coincidence with peak traffic periods at the external borders.
- (7) In order to allow all parties concerned to make the practical arrangements necessary to prepare for the start of operations of the EES, this Decision should enter into force on the day of its publication.
- (8) Given that Regulation (EU) 2017/2226 builds upon the Schengen *acquis*, Denmark notified its decision to implement Regulation (EU) 2017/2226 in its national law, in accordance with Article 4 of the Protocol on the position of Denmark annexed to the Treaty on European Union and to the Treaty on the Functioning of the European Union Denmark is therefore bound by this Decision.
- (9) This Decision does not constitute a development of the provisions of the Schengen *acquis* in which Ireland takes part in accordance with Council Decision 2002/192/EC ⁽³⁾; Ireland is therefore not taking part in the adoption of this Decision and is not bound by it or subject to its application.
- (10) As regards Iceland and Norway, this Decision constitutes a development of the provisions of the Schengen *acquis* within the meaning of the Agreement concluded by the Council of the European Union and the Republic of Iceland and the Kingdom of Norway concerning those States association with the implementation, application and development of the Schengen *acquis* ⁽⁴⁾, which fall within the area referred to in Article 1, point A of Council Decision 1999/437/EC ⁽⁵⁾.
- (11) As regards Switzerland, this Decision constitutes a development of the provisions of the Schengen *acquis* within the meaning of the Agreement between the European Union, the European Community and the Swiss Confederation on the Swiss Confederation's association with the implementation, application and development of the Schengen *acquis* ⁽⁶⁾, which fall within the area referred to in Article 1, point A of Decision 1999/437/EC, read in conjunction with Article 3 of Council Decision 2008/146/EC ⁽⁷⁾.

⁽³⁾ Council Decision 2002/192/EC of 28 February 2002 concerning Ireland's request to take part in some of the provisions of the Schengen *acquis* (OJ L 64, 7.3.2002, p. 20, ELI: <http://data.europa.eu/eli/dec/2002/192/oj>).

⁽⁴⁾ OJ L 176, 10.7.1999, p. 36, ELI: [http://data.europa.eu/eli/agree_internation/1999/439\(1\)/oj](http://data.europa.eu/eli/agree_internation/1999/439(1)/oj).

⁽⁵⁾ Council Decision 1999/437/EC of 17 May 1999 on certain arrangements for the application of the Agreement concluded by the Council of the European Union and the Republic of Iceland and the Kingdom of Norway concerning the association of those two States with the implementation, application and development of the Schengen *acquis* (OJ L 176, 10.7.1999, p. 31, ELI: <http://data.europa.eu/eli/dec/1999/437/oj>).

⁽⁶⁾ OJ L 53, 27.2.2008, p. 52, ELI: [http://data.europa.eu/eli/agree_internation/2008/178\(1\)/oj](http://data.europa.eu/eli/agree_internation/2008/178(1)/oj).

⁽⁷⁾ Council Decision 2008/146/EC of 28 January 2008 on the conclusion, on behalf of the European Community, of the Agreement between the European Union, the European Community and the Swiss Confederation on the Swiss Confederation's association with the implementation, application and development of the Schengen *acquis* (OJ L 53, 27.2.2008, p. 1, ELI: <http://data.europa.eu/eli/dec/2008/146/oj>).

- (12) As regards Liechtenstein, this Decision constitutes a development of the provisions of the Schengen *acquis* within the meaning of the Protocol between the European Union, the European Community, the Swiss Confederation and the Principality of Liechtenstein on the accession of the Principality of Liechtenstein to the Agreement between the European Union, the European Community and the Swiss Confederation on the Swiss Confederation's association with the implementation, application and development of the Schengen *acquis* ⁽⁸⁾ which fall within the area referred to in Article 1, point A of Decision 1999/437/EC read in conjunction with Article 3 of Council Decision 2011/350/EU ⁽⁹⁾.
- (13) As regards Cyprus, the provisions of the Schengen *acquis* relating to the Schengen Information System have been put into effect by Council Decision (EU) 2023/870 ⁽¹⁰⁾. However, the operation of the EES also requires the granting of passive access to the Visa Information System once the verification in accordance with the applicable Schengen evaluation procedure has been successfully completed. The EES should be operated only by a Member State which fulfils this condition at the start of the operation of the EES. Therefore, Cyprus which is not operating the EES from the start of operations should be connected to the EES, in accordance with the procedure set out in Regulation (EU) 2017/2226, as soon as all of the conditions are met,

HAS ADOPTED THIS DECISION:

Article 1

The Entry/Exit System established by Regulation (EU) 2017/2226 shall start operations on 12 October 2025.

Article 2

This Decision shall enter into force on the day of its publication in the *Official Journal of the European Union*.

Done at Brussels, 30 July 2025.

For the Commission
The President
Ursula VON DER LEYEN

⁽⁸⁾ OJ L 160, 18.6.2011, p. 21.

⁽⁹⁾ Council Decision 2011/350/EU of 7 March 2011 on the conclusion, on behalf of the European Union, of the Protocol between the European Union, the European Community, the Swiss Confederation and the Principality of Liechtenstein on the accession of the Principality of Liechtenstein to the Agreement between the European Union, the European Community and the Swiss Confederation on the Swiss Confederation's association with the implementation, application and development of the Schengen *acquis*, relating to the abolition of checks at internal borders and movement of persons (OJ L 160, 18.6.2011, p. 19, ELI: <http://data.europa.eu/eli/dec/2011/350/oj>).

⁽¹⁰⁾ Council Decision (EU) 2023/870 of 25 April 2023 on the application of the Schengen *acquis* relating to the Schengen Information System in the Republic of Cyprus (OJ L 113, 28.4.2023, p. 44, ELI: <http://data.europa.eu/eli/dec/2023/870/oj>).